

25LBCV03018 25LBCV03018

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Case Number: 25LBCV03018 Hearing Date: August 6, 2026 Dept: S28

Background Facts

Plaintiffs, Kevin Mann and Michael

Wroten, Jr. filed this action against Defendants, Ackerfield 2 LLC and Golden Bee Management LLC for tenant harassment, violation of BPC §17200, violation of Penal Code §496, and declaratory relief.

The crux of the complaint is that Defendants own and manage the apartment buildings in which Plaintiffs reside, and they have unlawfully imposed charges on tenants and interfered with tenants' rights to organize.

Demurrer

a.

Legal Standard on Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purpose of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true, however improbable they may be.

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* 39 Cal.3d 311 (1985). No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). A demurrer is brought under CCP § 430.10 [grounds], § 430.30 [as to any matter on its face or from which judicial notice may be

taken], and § 430.50(a) [can be taken to the entire complaint or any cause of action within]. Specifically, a demurrer may be brought per CCP § 430.10(e) if insufficient facts are stated to support the cause of action asserted. Per CCP §430.10(a) a demurrer may be brought where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. Furthermore, demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. CCP § 430.10(f).

However, in construing the allegations, the court is to give effect to specific factual allegations that may modify or limit inconsistent general or conclusory allegations. *Financial Corporation of America v. Wilburn*, 189 Cal.App.3rd 764, 769 (1987). And, if the facts pled in the complaint are inconsistent with facts which are incorporated by reference from exhibits attached to the complaint, the facts in the incorporated exhibits control. Further, irrespective of the name or label given to a cause of action by the plaintiff, a general demurrer must be overruled if the facts as pled in the body of the complaint state some valid claim for relief. Special demurrers are not allowed in limited jurisdiction courts. (CCP § 92(c).)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. *Goodman v. Kennedy*, 18 Cal.3d 335, 348 (1976). The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

Finally, CCP section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP §430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP §430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP §430.41(a)(3).)

b. Meet
and Confer

Defense Counsel declares she sent a meet and confer letter and invited Plaintiff's attorney to meet and confer, and Plaintiff's attorney emailed back disagreeing with the letter and further inviting Defense Counsel to meet and confer. The Code requires meet and confer "in person or over the telephone." The Court will rule on the demurrer despite this requirement, but Defense Counsel must make active efforts to do so in the future in this and other actions.

c. Tenant
Harassment

Long Beach Municipal Code
§8.101.030 defines tenant harassment. §8.103.030(L) provides, in pertinent part:

No owner shall... [i]nterfere with the right of tenants to organize as tenants and engage in concerted activities with other tenants for the purpose of mutual aid and protection; deny property access to tenant organizers, advocates, or representatives working with or on behalf of tenants living at a property; prevent tenant or tenant organization meetings in an appropriate space accessible to tenants under the terms of their rental agreement(s).

Plaintiffs allege the following concerning their attempts to organize and Defendant's interference with those rights:

39. During his tenancy, Mr. Wroten was permitted to reserve the clubhouse located at the Ackerfield Buildings for tenant use. On or about October 2024, he reserved the clubhouse for a tenant "Know Your Rights" presentation scheduled for November 6, 2024, to be conducted by Long Beach Residents Empowered (LIBRE), and paid the required \$100 reservation fee.

40. The event was intended to educate tenants at the Ackerfield Buildings about their legal protections under California law.

41. On or around November 6, 2024,

Defendants canceled Mr. Wroten's reservation, stating that the clubhouse could not be used for a tenant-rights meeting.

Defendant raises various factual issues outside the scope of demurrer in its demurrer, such as whether Plaintiff really had the right to reserve the clubhouse, whether the clubhouse was appropriate for this type of meeting, whether the meeting could have been held elsewhere, etc. The Court finds the allegations sufficient to state a claim for tenant harassment under the provision, and the demurrer is overruled.

The Court declines to rule on the other arguments concerning the tenant harassment cause of action, as doing so is not necessary to a resolution of the merits of the demurrer.

d. Unfair
Business Practices

Defendant argues the §17200 cause of action fails because the tenant harassment cause of action fails. The demurrer is overruled because the demurrer to the tenant harassment cause of action is overruled.

e. Penal
Code §496

Penal Code §496 permits a civil action when a defendant has bought or received stolen property. Defendant argues this section does not apply to rent payments. Plaintiffs, in opposition, cite *Johnson v. Connie, LLC* (2025) 113 Cal.App.5th 850 to support their position that it applies under the circumstances.

In *Johnson*, the plaintiffs sued the defendants for illegal rent increases.

The complaint included a cause of action for violation of §496, and the trial court granted the defendant's motion for a directed verdict on the cause of action. The plaintiff appealed, and the court of appeals reversed. The court of appeals concluded that knowingly accepting illegally increased rent constitutes theft such that a violation of §496 is properly alleged. Plaintiffs herein allege Defendant knowingly accepted rent that included improper mandatory Spectrum charges and late fees,

which is substantially the same allegation that was made in Johnson. The demurrer is overruled.

f. Declaratory

Relief

Defendant's demurrer to the declaratory relief cause of action rises and falls with its demurrer to the other causes of action, and is therefore overruled.

g. Uncertainty

Defendant argues the complaint is uncertain because it is not clear which tenants were charged improper fees and for how long those fees were charged.

These details are the proper scope of discovery; the allegations are sufficient to allege wrongful conduct, and therefore the demurrer is overruled.

3. Motion to Strike

a. UCL Relief

Defendant moves to strike Plaintiffs' prayer for relief in connection with the UCL cause of action, contending the remedies for a violation of the UCL consist solely of injunctive relief and restitution of money or property obtained through the unfair competition.

Defendant argues Plaintiffs' request for restitution is improper because they do not clarify how long they were charged unlawful Spectrum fees or in what amount. As noted above, this is the proper subject of discovery, not of a pleading challenge.

Defendant argues the prayer for disgorgement is not proper because "nonrestitutionary disgorgement" is not available in a UCL action. Plaintiffs, in opposition, agree with the law, but contend they are seeking restitutionary disgorgement. The claims for restitution and disgorgement appear to be redundant, but there is no harm in allowing both words to appear in the complaint; Plaintiffs will clearly only be permitted a single recovery at the time of the trial.

Defendant argues the prayer for injunctive relief is not proper because there is no threat of continuing or future misconduct. This is a factual issue not appropriate for resolution at the pleading stage.

Finally, Defendant argues attorneys' fees are not recoverable under the UCL. Plaintiffs concede this, but contend they are seeking fees per CCP §1021.5, the so-called "private attorney general doctrine." The Court finds, at the pleading stage, that Plaintiffs have stated a claim for fees under §1021.5, such that the prayer for relief is proper.

The motion to strike the requests for relief in connection with the §17200 cause of action is denied.

b. Penal Code and Declaratory Relief

The remainder of Defendant's motion to strike is redundant of their demurrer and is denied for the reasons detailed above.

4. Conclusion

Defendant's demurrer is overruled. Its motion to strike is denied. Defendant is ordered to file an answer to the complaint within ten days.